

HOUSE No. 1660

The Commonwealth of Massachusetts

PRESENTED BY:

Marjorie C. Decker

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to juvenile fines, fees, and restitution.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>1/17/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>5/28/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/13/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>7/7/2025</i>

HOUSE No. 1660

By Representative Decker of Cambridge, a petition (accompanied by bill, House, No. 1660) of Marjorie C. Decker relative to juvenile fees, fines, and restitution. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to juvenile fines, fees, and restitution.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 178Q of Chapter 6, as appearing in the General Laws, as appearing
2 in the 2022 Official Edition, is hereby amending by inserting after “upon every sex offender” the
3 following:

4 except those who committed their offense while under the age of criminal majority.

5 SECTION 2. Chapter 119, as appearing in the General Law is hereby amended by
6 striking out Section 29A.

7 SECTION 3. Section 55 of Chapter 119 of the General Laws is hereby amended by
8 striking out the following words from the first paragraph:-

9 A parent, guardian or person with whom such child resides who is summoned to appear
10 before the court to show cause why such child shall not be adjudged a delinquent child by reason
11 of having committed the offense of wilful or malicious destruction or wanton destruction of
12 property, in violation of the provisions of section one hundred and twenty-seven or one hundred

and twenty-seven A of chapter two hundred and sixty-six, and who wilfully fails to so appear shall be punished by a fine of not less than two hundred nor more than three hundred dollars.

SECTION 4. Section 58B of Chapter 119 of the General Laws is hereby amended by inserting after the words “section sixty-two” the following words:-

subject to a determination of the youth's ability to pay. Restitution shall not be ordered in excess of the youth's ability to pay and the length of time it may take a youth to pay may not be considered in determining the length of probation.”, and by amending it further by striking out the following words “; and in addition to or in lieu of such disposition, the court may impose upon such child a fine not exceeding the amount of the fine authorized for the violation of such statute, by-law, ordinance or regulation. Any fine imposed under the authority of this section shall be collected, recovered and paid over in the manner provided by chapters two hundred and seventy-nine and two hundred and eighty; provided, however, that if any child shall neglect, fail or refuse to pay a fine imposed under this section, he may be arrested upon order of the court and brought before the court, which may thereupon place him in the care of a probation officer or commit him to the custody of the department of youth services; but no such child shall be committed to any jail, house of correction, or correctional institution of the commonwealth.

SECTION 5. Chapter 119, as appearing in the General Law is hereby amended by adding the following section:

Section 58C. Notwithstanding any general or special law or rule or regulation to the contrary, no fine or fee shall apply to any person based on an offense committed while under the age of criminal majority or the person's parent, guardian, or legal custodian.

SECTION 6. Section 59 of Chapter 119, as appearing in the General Law, is hereby amended by inserting after “warrant for his arrest” the following language:

except that a warrant may not issue solely for nonpayment of fines or fees.

SECTION 7. Section 62 of Chapter 119 of the General Laws is hereby amended by striking, in lines 4 to 10, the following words, “the court may require, as a condition thereof, that he shall make restitution or reparation to the injured person to such an extent and in such sum as the court determines. If the payment is not made at once, it shall be made to the probation officer, who shall give a receipt therefor, keep a record of the payment, pay the money to said injured person, and keep on file his receipt therefor.” And replacing in place thereof the following words:-

the court may hold a restitution hearing. There shall be no mandatory order of restitution, and any order shall be made at the discretion of the presiding judge. At a restitution hearing, the court shall make a determination of a youth’s ability to pay. The amount set may not exceed the youth’s ability to pay and the length of time it may take a youth to pay may not be taken into consideration in determining the length of probation. The youth’s term of probation shall not be extended or revoked solely based upon the nonpayment of restitution. There shall be a presumption of inability to pay, which may be rebutted at a restitution hearing by evidence establishing that the youth (1) has an income that is 250% of the federal poverty line, independent of parental or other family income; (2) is not currently incarcerated, detained, or in out-of-home placement, and (3) is not receiving needs-tested government benefits, including but not limited to free school lunch, SNAP, TANF, SSI, or housing assistance. A juvenile for whom restitution is ordered who is not able to make restitution payments in the manner ordered by the

56 court may move the court for a modification of the restitution order. If the court determines the
57 juvenile is unable to pay the restitution in the time and manner ordered, the court may modify its
58 prior order to allow additional time for payment, reduce the amount of restitution, or eliminate
59 the amount of restitution ordered.

60 SECTION 8. Section 63 of Chapter 119, as appearing in the General Law, is hereby
61 amended by inserting after “any person” the following:

62 over the age of criminal majority

63 SECTION 9. Section 145 of Chapter 127, as appearing in the General Law, is hereby
64 amended by striking section (e) and replacing it with the following:

65 (e) A justice of the trial court shall not commit a person to a prison, place of confinement
66 or the department of youth services solely for the non-payment of money based on conduct that
67 occurred committed while under the age of criminal majority.

68 SECTION 10. Section 2 of Chapter 211D, as appearing in the General Law is hereby
69 amended by inserting, in line 6, after the words, “fee for the appointment of counsel”, the
70 following words:-

71 , except that no one accused of committing an offense while under the age of criminal
72 majority will be assessed any fee for the appointment of counsel

73 SECTION 11. Section 2A of Chapter 211D, as appearing in the General Law is hereby
74 amended by striking out, in line 1 and in line 106, the words “under 18 years of age,” and
75 inserting in place thereof the following:

76 under the age of criminal majority

SECTION 12. Section 8 of Chapter 258B, as appearing in the General Law is hereby amended by striking, in line 2 and in line 6, the following words:- “who has attained the age of seventeen years and”

SECTION 13. Said section 8 of Chapter 258B, as appearing in the General Law is further amended by striking the following sentence:- “The court shall impose an assessment of \$45 against any person who has attained the age of fourteen years and who is adjudicated a delinquent child or against whom a finding of sufficient facts for a finding of delinquency is made.”

SECTION 14. Said section 8 of Chapter 258B, as appearing in the General Law is further amended by striking, in line 16, the following words:- “or adjudication”

SECTION 15. Said section 8 of Chapter 258B, as appearing in the General Law is further amended by striking, in lines 29 to 31, the following words:- “; provided, however, that the total assessment against a person who has not attained seventeen years shall not exceed thirty dollars”

SECTION 16. Said section 8 of Chapter 258B, as appearing in the General Law is further amended by striking, in lines 59 to 60 and in lines 61 to 62, the following words:- “or adjudication of delinquency”

SECTION 17. Section 1 of Chapter 258C of the General Laws is hereby amended by striking, in lines 58 to 59, the words, ““Victim”, a person who suffers personal physical or psychological injury or death and inserting in place thereof:-

“Victim”, a person who suffers a financial loss as the result of a crime committed by a person under the age of criminal majority; personal physical or psychological injury; or death:

SECTION 18. Section 2 of Chapter 258C of the General Laws is hereby amended by striking subsection (a) and inserting in place thereof:-

(a) No compensation shall be paid under this chapter unless the division finds that a crime was committed and that such crime (i) was committed by a person under the age of criminal majority and resulted in a financial loss to the victim or (ii) directly resulted in personal physical or psychological injury to, or death of, the victim.

SECTION 19. Section 2 of Chapter 258C of the General Laws is hereby amended by striking subsection (c) and inserting in place thereof:-

(c) A claimant shall be eligible for compensation only if such claimant cooperates with law enforcement authorities in the investigation and prosecution of the crime in which the victim suffered a financial loss as a result of a crime committed by a person under the age of criminal majority or was injured or killed unless the claimant demonstrates that he possesses or possessed a reasonable excuse for failing to cooperate.

SECTION 20. Section 47 of Chapter 265, as appearing in the General Laws, is hereby amended by inserting, in line 25, after the words “paid by the probationer,” the following words:-

over the age of criminal majority

SECTION 21. Section 30 of Chapter 276, as appearing in the General Laws, is hereby amended by inserting in the first sentence after the words “any person,” the following words:-

excepting individuals alleged to have committed an offense while under the age of criminal majority,

SECTION 22. Section 87A of Chapter 276, as appearing in the General Laws, is hereby amended by striking out the words, or (ii) solely on the basis of possession or use of medical marijuana obtained in compliance with and in quantities consistent with applicable state regulations if that person received a written certification from a healthcare professional for the use of medical marijuana to treat a debilitating medical condition and the person possesses a valid medical marijuana registration card and if the quantity in the person's possession is not greater than the amount recommended in the healthcare professional's written certification.” and inserting in place thereof, the following words:-

(ii) solely on the basis of possession or use of medical marijuana obtained in compliance with and in quantities consistent with applicable state regulations if that person received a written certification from a healthcare professional for the use of medical marijuana to treat a debilitating medical condition and the person possesses a valid medical marijuana registration card and if the quantity in the person's possession is not greater than the amount recommended in the healthcare professional's written certification. or (iii) solely on the basis of nonpayment of a fine, fee or other monetary obligation imposed as a result of an offense committed while under the age of criminal majority.

SECTION 23. Section 6 of Chapter 280, as appearing in the General Laws, is hereby amended, in line 6, after the words “criminal defendant” the following words:-

over the age of criminal majority

SECTION 24. On the effective date of this section, the balance of any court-assessed or court-ordered fines or costs imposed against a juvenile, or other person who is liable for the support of a juvenile, are unenforceable and not collectable.